

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Team # 5	CCRB Case #: 201305172	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/12/2013 4:49 PM	Location of Incident: Fordham Road and Jerome Avenue 4-Line train station.	Precinct: 52	18 Mo. SOL 8/12/2014	EO SOL 8/12/2014	
Date/Time CV Reported Tue, 06/11/2013 3:38 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 06/11/2013 3:38 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mario Deleon	23396	926749	TB DT11
2. SGT Albert Rodriguez	02441	933532	TB DT11

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carl Beard	29042	914677	TB DT11

Officer(s)	Allegation	Investigator Recommendation
A.SGT Albert Rodriguez	Abuse: Sgt. Albert Rodriguez stopped § 87(2)(b)	
B.POM Mario Deleon	Force: PO Mario Deleon used physical force against § 87(2)(b)	
C.SGT Albert Rodriguez	Force: Sgt. Albert Rodriguez used physical force against § 87(2)(b)	

Case Summary

§ 87(2)(b) initially filed the following complaint with the CCRB on April 24, 2013 as a walk-in and did not make any FADO allegations (Encl. 3A). § 87(2)(b) returned to the CCRB in person on June 11, 2013 and added allegations to the previous complaint (Encl. 3B-C).

On February 12, 2013, at approximately 4:49 p.m., police officers arrested § 87(2)(b) at the East Fordham Road and Jerome Avenue train station in the Bronx. The following allegations resulted:

- **Allegation A – Abuse of Authority: Sgt. Albert Rodriguez stopped § 87(2)(b)**

§ 87(2)(g)

- **Allegation B – Force: PO Mario Deleon used physical force against § 87(2)(b)**

- **Allegation C – Force: Sgt. Albert Rodriguez used physical force against § 87(2)(b)**

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a 6'1" black male that weighs 160 pounds with black hair and black eyes. He was § 87(2)(b) at the time of the incident. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a statement to the CCRB on April 24, 2013 (Encl. 3A) and sworn statement on June 11, 2013 (Encl. 3B-C). § 87(2)(g)

On February 12, 2013 at a time § 87(2)(b) could not recall, he entered the 4-train subway station located at Jerome Avenue and East Fordham Road. He was holding a bag of chips and four dollars. § 87(2)(b) attempted to enter the station via turnstile multiple times but his Metro Card did not work. He yelled at the person in the booth because he believed they were purposely turning off the turnstile. In the meantime, another male, identified by the investigation as § 87(2)(b) was arrested on the other side of the turnstile. The two officers that were with the male, identified by the investigation as PO Mario Deleon and Sgt. Albert Rodriguez approached § 87(2)(b)

PO Deleon told § 87(2)(b) to drop his bag of potato chips. PO Deleon then reached over the turnstile and punched § 87(2)(b) in the chest. § 87(2)(b) was then handcuffed and brought into the train station. Once inside, § 87(2)(b) was asked by Sgt. Rodriguez if he had any sharp objects in his pocket. § 87(2)(b) stated that he did not have any because he assumed Sgt. Rodriguez meant a razor or a knife. Sgt. Rodriguez searched all of § 87(2)(b)'s pockets and found a piece of glass that was approximately 1-inch long. Sgt. Rodriguez asked § 87(2)(b) "Why did you lie to me? I thought you said you had nothing sharp in your pockets." Sgt. Rodriguez then punched § 87(2)(b) in the chest.

§ 87(2)(b) was charged with § 87(2)(b) and had 27 dollars vouchered.

Additional Information

§ 87(2)(b) returned to the CCRB several times between June 11, 2013 and July 26, 2013. He continuously requested copies of his case file and copies of his CCRB Testimony recordings because he felt that the CCRB would manipulate the audio. § 87(2)(b) was told by the undersigned investigator that all requests for case materials should be made in writing to the CCRB Agency Counsel. § 87(2)(b) left several voicemails with the undersigned investigator falsely stating that the undersigned promised to personally mail the case materials.

§ 87(2)(b)

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Attempts to Contact Civilians

The undersigned investigator obtained an address for § 87(2)(b) from his arrest report on the date of the incident (Encl. 14B-D). There were no phone numbers found after a search of Yellow Pages and LexisNexis. Two letters were sent to § 87(2)(b) via United States Postal Service on June 17 and June 26, 2013 (Encl. 17A-B). Neither letter was returned and as of the writing of this report, § 87(2)(b) has made no attempt to contact the CCRB.

NYPD Statements:

Subject Officer: SGT ALBERT RODRIGUEZ

- *Sgt. Rodriguez is a 5'6", 170 pound, Hispanic male with black hair and brown eyes. He was § 87(2)(b) old at the time of the incident.*
- *Sgt. Rodriguez was assigned to conditions for Transit District 11. He worked with PO Deleon on a 4:50 p.m. to 11:47 p.m. tour. He was not assigned to a motor vehicle.*

Memo Book

On February 12, 2013, at 4:49 p.m., one Metro Card swiper was arrested by PO Deleon (Encl. 10A-C).

CCRB Testimony

Sgt. Rodriguez was interviewed at the CCRB on July 26, 2013 (Encl. 11A-B).

On February 12, 2013, at approximately 4:49 p.m., PO Deleon and Sgt. Rodriguez observed § 87(2)(b) selling Metro Card swipes at the East Fordham Road and Jerome Avenue subway station. Sgt. Rodriguez and PO Deleon approached § 87(2)(b) identified themselves and placed him under arrest. § 87(2)(b) did not resist and was compliant the entire time. Neither officer punched § 87(2)(b) in the chest.

Subject Officer: PO MARIO DELEON

- *PO Deleon is a 5'10", 205 pound, Hispanic male with black hair and brown eyes. He was § 87(2)(b) years old at the time of the incident.*
- *PO Deleon was assigned to conditions for Transit District 11. He worked with Sgt. Albert Rodriguez on a 3:00 p.m. to 11:35 p.m. tour. He was not assigned to a motor vehicle.*

Memo Book

On February 12, 2013, at 4:49 p.m., a black male was arrested for swiping a Metro Card on three occasions at the turnstile and hand collecting U.S. currency from others and giving unauthorized access to the transit system. At 4:55 p.m., the defendant was transported by PO Beard and PO Campbell. At 5:51 p.m. arrest processing was done. At 5:55 p.m., the arrest number was generated. At 6:00 p.m., the defendant was fingerprinted. At 6:25 p.m., fingerprinting was completed. At 8:15 p.m., a Desk Appearance Ticket was approved and at 8:16 p.m. the defendant was released (Encl. 5A-D).

Arrest Report

§ 87(2)(b) was arrested on February 12, 2013 at approximately 4:49 p.m. He was observed on three occasions swiping a Metro Card at the turnstile and hand collecting U.S. currency from others and giving them unauthorized access to the NYC transit system (Encl. 6A-C).

Desk Appearance Ticket

§ 87(2)(b) provided the CCRB with a copy of his Desk Appearance Ticket which states that § 87(2)(b) was standing in the mezzanine area of the East Fordham Road and Jerome Avenue subway station. He was observed hand collecting U.S. currency from three different individuals and swiped one Metro Card through the turnstile which allowed the individuals access to the subway station (Encl. 8A-B).

CCRB Testimony

PO Deleon was interviewed at the CCRB on July 11, 2013 (Encl. 9A-B). § 87(2)(g)

On February 12, 2013 at approximately 4:49 p.m., § 87(2)(b) was searched after he was handcuffed and nothing was found on him except money and Metro Cards, which were vouchered. The three individuals that purchased the Metro Card swipes were not present when § 87(2)(b) was approached.

Witness Officer: PO CARL BEARD

- *PO Beard is a black male, 6'2" tall, weighs 220 pounds and has black hair and brown eyes. He was § 87(2)(b) old at the time of the incident.*
- *PO Beard was assigned to Patrol Sector 11A for Transit District 11. He worked a 4:00p.m. to 12:00 a.m. tour with P.O. Campbell and was in uniform. He was assigned to marked motor vehicle 3589.*

Memo Book

PO Beard had no memo book entry regarding this incident (Encl. 12A-D).

CCRB Testimony

PO Beard was interviewed at the CCRB on July 11, 2013 (Encl. 13A-B). § 87(2)(g)

On February 12, 2013 at an unknown time, PO Beard transported § 87(2)(b) to the Transit District 11 stationhouse.

NYPD Documents

Property Voucher

Twenty-seven dollars were vouchered from § 87(2)(b) on the date of his arrest. One ten dollar bill, one five dollar bill, and twelve one dollar bills (Encl. 7A-C).

Transit District 11 Command Log

The command log for Transit District 11 shows that § 87(2)(b) was brought into the stationhouse at 5:21 p.m. and his arresting officer was PO Deleon. His physical condition was apparently normal. He was released at 9:16 p.m. with Desk Appearance Ticket number 8427 (Encl. 14H).

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b) claiming arrest without probable cause and police brutality and seeking \$150,000 total (Encl. 18A).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (Encl. 2A)

Subject Officers' CCRB History

- PO Mario Deleon has been a member of the service for 12 years and there are no substantiated CCRB allegations against him (Encl. 1A).
- Sgt. Albert Rodriguez has been a member of the service for 10 years and there are two substantiated CCRB allegations against him. (Encl. 1B).
 - In CCRB case number 201106874, Sgt. Rodriguez had Abuse: Vehicle Search and Abuse: Seizure of Property allegations substantiated against him and received instructions.

Conclusion

Identification of Subject Officers

PO Deleon and Sgt. Rodriguez acknowledged their interaction with § 87(2)(b) during their CCRB Interviews. Additionally, PO Deleon was listed as the arresting officer and his name was on the Desk Appearance Ticket.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Albert Rodriguez stopped § 87(2)(b)

§ 87(2)(b) alleged that he was swiping his Metro Card at the turnstile of the East Fordham Road and Jerome Avenue subway station. He claimed that the booth operator was turning off the turnstile on purpose. PO Deleon and Sgt. Rodriguez then approached § 87(2)(b) regarding that situation. According to the arrest report and the testimonies of PO Deleon and Sgt. Rodriguez, § 87(2)(b) was observed selling Metro Card swipes to several unidentified individuals and allowed unauthorized access to the NYC transit system. PO Deleon and Sgt. Rodriguez approached. § 87(2)(b) denied that he was selling Metro Card swipes. § 87(2)(b)'s property vouchers show that three Metro Cards were on § 87(2)(b)'s person, as well as several one-dollar bills. § 87(2)(g)

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§ 87(2)(g)

Allegation B – Force: PO Mario Deleon used physical force against § 87(2)(b)

Allegation C – Force: Sgt. Albert Rodriguez used physical force against § 87(2)(b)

§ 87(2)(b) originally filed the complaint with the CCRB on April 24, 2013 and stated that he was merely arrested and given a Desk Appearance Ticket. He did not make any FADO allegations. He returned on June 11, 2013 and added allegations to the original complaint. § 87(2)(b) alleged that upon the approach of PO Deleon, he was asked to drop his potato chips. When he did not, PO Deleon punched § 87(2)(b) in the chest from the other side of the turnstile. He was asked if he had any sharp objects on him and he stated that he did not. He was searched and a piece of glass was found on him. § 87(2)(b) alleged that Sgt. Rodriguez then punched him in the chest.

PO Deleon and Sgt. Rodriguez stated in their CCRB testimonies that § 87(2)(b) was observed selling Metro Card swipes. Both officers approached § 87(2)(b) identified themselves and turned him around to place him under arrest. § 87(2)(b) was compliant throughout the whole incident, he did not resist. Neither officer punched § 87(2)(b) in the chest. PO Beard transported § 87(2)(b) to the Transit District 11 stationhouse and stated that § 87(2)(b) was calm and compliant and did not cause any problems.

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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
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Reviewer: _____
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